GROUP ASSIGNMENT 2 (2026)

Group 3

Case: **manipulating the price of TSR shares** under the Securities and Exchange Act B.E. 2535

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Course: Ethics and Law for Financial Engineers
Instructor: Dr. Chatchai Lapprathana
Submission date: 21 October 2026

CASE

TSR market manipulation: 47 trading days in 2022

Securities and Exchange Act B.E. 2535 (1992), as amended

Group Assignment 2 (2026), Group 3

Outline

No.	Part	Content	Law used
1	**News**	News links, what happened, timeline, stakeholders	All news dated 2026
2	**Facts**	Facts F1 to F12, then every provision checked element by element	Sections 238 to 244/7
3	**Question**	The one legal question we answer	Guide: Facts, then Question
4	**Law**	Which law we use, why, and which sections were violated	SEC Act B.E. 2535
5	**Analysis**	Rules 1 to 4: Law/Rule, Analysis, Conclusion	ss.244/3, 244/5, 296, 317
6	**Conclusion**	One answer to the Question	In conclusion, ...

OUR TEST A section is violated **only if all of its elements are met**. If one element is missing, it is not violated.

Method from "A guide to answer a legal question (2026)"

News: Sources

Date	Outlet and headline	URL
23 Jan 2026	มิติหุ้น (Mitihoon): ก.ล.ต. ใช้มาตรการลงโทษทางแพ่งกับผู้กระทำความผิด 1 ราย กรณีสร้างราคาหรือปริมาณการซื้อขายหุ้น TSR	https://www.mitihoon.com/2026/01/23/611929/
23 Jan 2026	ฐานเศรษฐกิจ (Thansettakij): ก.ล.ต. ลงโทษทางแพ่ง ‘ภรัณยา รุจนพรพจี’ กรณีปั่นหุ้น TSR สั่งปรับกว่า 32 ล้าน	https://www.thansettakij.com/finance/stockmarket/649730
24 Jan 2026 MAIN NEWS	**หุ้นสมาร์ท (Hoonsmart): ก.ล.ต.สั่งปรับ “ภรัณยา รุจนพรพจี” กว่า 32 ลบ. ปั่นหุ้น TSR**	**https://hoonsmart.com/archives/400329**
26 Mar 2026	ฐานเศรษฐกิจ (Thansettakij): ก.ล.ต. ลงดาบ ‘ภรัณยา รุจนพรพจี’ กรณีปั่นหุ้น MSC (related case)	https://www.thansettakij.com/finance/stockmarket/654988
11 May 2026	ฐานเศรษฐกิจ (Thansettakij): ก.ล.ต. ส่งฟ้อง ‘ภรัณยา รุจนพรพจี’ คดีปั่นหุ้น TSR เรียกชำระ 43 ล้านบาท	https://www.thansettakij.com/finance/658785
11 May 2026	หุ้นสมาร์ท (Hoonsmart): ก.ล.ต.ขออัยการฟ้อง คดีสร้างราคาหุ้น TSR	https://hoonsmart.com/archives/417813

MAIN NEWS Hoonsmart, 24 January 2026. **All six news items are dated after 1 January 2026**, as the assignment requires.

Mitihoon, Thansettakij, Hoonsmart (January to May 2026)

News: What Happened

Summary of the Main News

Who: นางสาวภรัณยา รุจนพรพจี, an individual investor and a major shareholder of SABUY.

What: **created the price and volume of TSR shares**, which are listed on the SET.

When: 22 June to 31 August 2022, **47 trading days**.

How: hit the offers, swept the sell orders, and **held large bids at price levels 1 and 2**.

Why (SEC): a fair-value gain for SABUY at the end of Q2/2022, and a profit from the price spread.

Result: CSC sanction of **THB 32.3 million** (Jan 2026). She refused, so the SEC asked the prosecutor to sue for **THB 43.0 million** plus interest (May 2026).

Main news: https://hoonsmart.com/archives/400329

47

trading days of manipulation, 22 June to 31 August 2022

+56%

TSR price, THB 4.24 (17 Jun) to THB 6.60 (30 Aug 2022)

2022 news reports (Hoonsmart), not the SEC

Hoonsmart (24 Jan 2026); Mitihoon (23 Jan 2026); 2022 prices from Hoonsmart (18 Jun and 30 Aug 2022)

News: Timeline

Date	Event	Source
3 May 2022	SABUY agrees to buy 24.90% of TSR from the Jaengyu family	RYT9 (2022)
17 Jun 2022	She buys 22.5 million TSR shares at THB 5.25; her own stake rises to 13.02%	Hoonsmart (2022)
22 Jun 2022	**The manipulation period starts**	Mitihoon (2026)
30 Jun 2022	**End of Q2/2022: SABUY measures its TSR investment at fair value**	Hoonsmart (2026)
30 Aug 2022	**TSR trades at THB 6.60, up 9.09% that morning**	Hoonsmart (2022)
31 Aug 2022	**The period ends after 47 trading days**	Mitihoon (2026)
Oct 2022	The SET sends the information to the SEC	Mitihoon (2026)
23 Jan 2026	CSC civil sanction: THB 32,327,329, 6-month trading ban, 12-month director ban	Mitihoon (2026)
26 Mar 2026	Related MSC case sent to the Civil Court	Thansettakij (2026)
11 May 2026	She refuses; the SEC asks the prosecutor to sue for THB 43,018,879.32	Thansettakij (2026)

STATUS Red rows: the 47-day period. **No court judgment** had been reported as of October 2026.

RYT9 (3 May 2022); Hoonsmart (18 Jun and 30 Aug 2022); Mitihoon (23 Jan 2026); Thansettakij (26 Mar and 11 May 2026)

News: Stakeholders

Stakeholder	Role in the case	Interest or impact
นางสาวภรัณยา รุจนพรพจี	**Alleged offender; holds shares in SABUY and 13.02% of TSR**	**Civil sanctions and possible criminal penalties**
SABUY (Sabuy Technology PCL)	Beneficiary; agreed to buy 24.90% of TSR in May 2022	Fair-value gain at the end of Q2/2022
TSR and its shareholders	The stock whose price was created	Distorted price and trading volume
Other investors	Misled about price and volume	Had to bid higher to get shares
Stock Exchange of Thailand	Market operator	Detected the trades; referred them to the SEC
SEC Office	Regulator	Investigated; proposed sanctions; asked for a lawsuit
Civil Sanction Committee	Chaired by the Attorney-General (s.317/3)	Set THB 32.3 million and the bans
Prosecutor, Civil Court, AMLO	Lawsuit and money-laundering review	Claim of THB 43.0 million plus interest

KEY POINT She held SABUY shares and **13.02% of TSR herself**, so she gained directly when TSR's price rose.

Hoonsmart (18 Jun 2022, 24 Jan and 11 May 2026); Thansettakij (11 May 2026); Securities and Exchange Act s.317/3

Group Assignment 2 (2026), Group 3

Facts

No.	Fact	Source
F1	นางสาวภรัณยา รุจนพรพจี is an individual investor and a major shareholder of SABUY.	Hoonsmart, 24 Jan 2026
F2	TSR is listed on the Stock Exchange of Thailand (SET).	Hoonsmart, 24 Jan 2026
F3	**From 22 Jun to 31 Aug 2022 (47 trading days), she hit the offers to push the price up and swept the sell orders continuously.**	Mitihoon, 23 Jan 2026
F4	**She held large buy orders at bid price levels 1 and 2, so other buyers had to bid higher to get shares quickly, and the price rose.**	Mitihoon, 23 Jan 2026
F5	SEC: her purposes were a fair-value gain for SABUY at the end of Q2/2022 and a profit from the price spread.	Hoonsmart, 24 Jan 2026
F6	SEC: the conduct misled the public about price and volume and moved them away from normal market conditions.	Thansettakij, 23 Jan 2026
F7	The SET referred the case in Oct 2022. CSC sanction (Jan 2026): THB 32,327,329, 6-month trading ban, 12-month director ban.	Mitihoon, 23 Jan 2026
F8	She did not consent. On 11 May 2026 the SEC asked the prosecutor to sue for THB 43,018,879.32 plus interest; AMLO notified.	Thansettakij, 11 May 2026
F9	Not reported in any news: pre-open or pre-close orders, false statements, inside information, others' accounts, system disruption.	All six news items

Mitihoon and Thansettakij (23 Jan 2026); Hoonsmart (24 Jan 2026); Thansettakij (11 May 2026)

Facts: Order Book

Hypothetical Order Book

Bid volume	Bid	Offer	Offer volume
2,500,000	**3.80**	3.82	40,000
1,800,000	**3.78**	3.84	55,000
60,000	3.76	3.86	30,000
45,000	3.74	3.88	70,000
30,000	3.72	3.90	25,000

Red cells: her large bids at levels 1 and 2. *Illustration only; the numbers are hypothetical, not actual TSR data.*

How the Pattern Works

1 Sweep
She buys every offer at 3.82, so the last traded price moves up (F3).

2 Wall
She places large bids at 3.80 and 3.78, so the board shows strong demand (F4).

3 Squeeze
Other buyers cannot get filled at the bid, so they pay the offer or more. This repeats for 47 trading days (F3, F4).

Group 3 illustration of F3 and F4, based on Mitihoon (23 Jan 2026)

Facts: Motive and Background

Motive Stated by the SEC (F5)

- Lift TSR's price so that SABUY could record a fair-value gain on its TSR investment at the end of Q2/2022.
- Make a profit from the price spread.

Background Found in 2022 News (Supporting Facts)

No.	Fact	Source
F10	3 May 2022: SABUY agreed to buy 24.90% of TSR. It expected to recognise TSR's results only from Q3/2022, which fits the SEC's point that TSR was at fair value at the end of Q2.	RYT9, 3 May 2022; Prachachat, 8 Sep 2022
F11	**17 Jun 2022: she bought 22.5 million TSR shares at THB 5.25 each (market close THB 4.24), raising her own stake to 13.02% of TSR.**	Hoonsmart, 18 Jun 2022
F12	TSR's price rose from THB 4.24 (17 Jun 2022) to THB 6.60 (30 Aug 2022), about 56%.	Hoonsmart, 18 Jun and 30 Aug 2022

13.02%

Her own stake in TSR after 17 Jun 2022, five days before the period began (F11)

Why it matters

Both SABUY (24.90%) and she personally (13.02%) gained when TSR's price rose. This supports **the intent element in Rules 1 and 2**.

RYT9 (3 May 2022); Hoonsmart (18 Jun and 30 Aug 2022); Prachachat (8 Sep 2022); Hoonsmart (24 Jan 2026)

Facts and Law Checklist (1/4)

Provision	What the law requires (elements)	Facts from the news	Result
s.238	Listed securities, or securities traded in the OTC center	TSR is listed on the SET (F2)	**Met**
s.244/3(1)	(a) any person, (b) places an order or trades, (c) misleads others about price or volume, (d) intent	F1, F3, F4, F6, F11	**Met: all (Rule 1)**
s.244/3(2)	(a) any person, (b) places orders or trades, (c) on a continued basis, (d) intent to make price or volume abnormal	F1, F3, F5, F11, F12	**Met: all (Rule 2)**
s.244/4(1)	Exception: (a) price stabilisation (b) under an underwriting agreement	No underwriting or stabilisation	**Not met: no defence**
s.244/4(2)	Exception: (a) share repurchase or resale (b) in a repurchase project	She is not the issuer; no buyback	**Not met: no defence**
s.244/4(3)	Exception: trading under the rules in an SEC notification	No SEC-permitted trading reported	**Not met: no defence**

RESULT **s.244/3(1) and (2) are met on every element**, and no exception in s.244/4 applies.

Securities and Exchange Act B.E. 2535, ss.238, 244/3, 244/4 (pp.80–82)

Facts and Law Checklist (2/4)

Provision	What the law requires (elements)	Facts from the news	Result
s.244/5(1)	(a) buys or sells, (b) with no change of beneficial ownership	No trade without a change of owner reported	**Not met: (b) missing**
s.244/5(2)	(a) places a buy order, (b) knowing she or an associate sells, (c) at a similar amount, price and time	No matching sell orders reported	**Not met: (b), (c) missing**
s.244/5(3)	(a) places a sell order, (b) knowing she or an associate buys, (c) at a similar amount, price and time	No matching buy orders reported	**Not met: (b), (c) missing**
s.244/5(4)	(a) places, modifies or cancels orders, (b) in the pre-opening or pre-closing period, (c) to push the opening or closing price	Cited by the SEC, but no news gives facts on pre-open or pre-close orders (F9)	*Not used: (b), (c) missing*
s.244/5(5)	(a) places, modifies or cancels orders, (b) obstructs other persons' trading, (c) others trade at a higher or lower price than they should	Large bids at levels 1 and 2 blocked other buyers, who had to bid higher (F4)	**Met: all**

RESULT Only **presumption (5) is met on every element**. It presumes the 'misleading' element of s.244/3(1) and the 'abnormal price' element of s.244/3(2).

Securities and Exchange Act B.E. 2535, s.244/5 (p.83)

Facts and Law Checklist (3/4)

Provision	What the law requires (elements)	Facts from the news	Result
s.240	(a) informs, spreads or certifies a statement, (b) false or materially misleading, (c) likely to affect the price	No statement was spread (F9)	**Not met: (a) missing**
s.241	(a) analysis or forecast, (b) using false or incomplete information, (c) disclosed to the public	No analysis or forecast published (F9)	**Not met: (a) missing**
s.242(1)	(a) knows inside information, (b) buys or sells the securities	No inside information alleged (F9)	**Not met: (a) missing**
s.242(2)	(a) knows inside information, (b) discloses it to someone who may use it	No disclosure alleged (F9)	**Not met: (a) missing**
ss.243–244	Presume who knows inside information; used only with s.242	s.242 is not in issue	*Not needed*
s.244/1	(a) a securities broker or its staff, (b) trades ahead of a client's order	She is an individual investor (F1)	**Not met: (a) missing**
s.244/2	(a) a fund-management company or its staff, (b) trades ahead of a fund's order	She is an individual investor (F1)	**Not met: (a) missing**

RESULT No other offence in ss.240 to 244/2 has **all of its elements met**.

Securities and Exchange Act B.E. 2535, ss.240–244/2 (pp.80–82)

Facts and Law Checklist (4/4)

Provision	What the law requires (elements)	Facts from the news	Result
s.244/6(1)	Opens a joint bank account for securities-trading payments	She placed the orders herself. No other person's account, payment, collateral or transfer is reported, so the 'other person' element of every item is missing (F3, F9).	**Not met: other person missing**
s.244/6(2)	Lets another person benefit from using one's own bank account		
s.244/6(3)	Lets another person use one's own securities trading account		
s.244/6(4)	Pays or receives payment for securities trading for another person		
s.244/6(5)	Places money or assets as collateral for another person's trading		
s.244/6(6)	Lets another person receive benefits or oversee payments of one's trading		
s.244/6(7)	Transfers or receives securities between each other		
s.244/7	(a) places, modifies or cancels orders, (b) knows it may make the market abnormal, (c) the trading system is delayed or stops	No delay or halt of the trading system (F9)	**Not met: (c) missing**

OVERALL Across all four checklists, **only s.244/3(1) and (2), with presumption s.244/5(5), have every element met**.

Securities and Exchange Act B.E. 2535, ss.244/6, 244/7 (pp.83–84)

Question

QUESTION

Has นางสาวภรัณยา รุจนพรพจี committed unfair securities trading under the Securities and Exchange Act B.E. 2535, and what sanctions may be imposed on her?

Answered with Four Rules: 1. Law/Rule, 2. Analysis, 3. Conclusion

RULE 1	RULE 2	RULE 3	RULE 4
Section 244/3(1) Misleading other persons	**Section 244/3(2)** Continuous trading with intent	**Sections 296 to 297/1** Criminal penalties	**Sections 317/1 to 317/8** Civil sanctions

Format from "A guide to answer a legal question (2026)"

Group Assignment 2 (2026), Group 3

Law

Law	Sections	Why we use it	Result
Unfair securities trading	ss.238 to 244/7	TSR is a listed security (s.238), and the conduct is placing trading orders	**Violated: s.244/3(1) and (2)**
Criminal penalties	ss.296, 296/1, 296/2, 297/1	They set the punishment for s.244/3(1) and (2)	Apply if she is prosecuted (Rule 3)
Civil sanctions	ss.317/1 to 317/8	The route the SEC used: the CSC, then the Civil Court	Apply: she refused, so the SEC sued (Rule 4)

VIOLATED

Section 244/3(1) and (2), supported by the presumption in Section 244/5(5).

Not violated: ss.240, 241, 242, 244/1, 244/2 and 244/7, because at least one element is missing (Checklists 3 and 4).
Not used: s.244/5(4), because no news gives facts about pre-opening or pre-closing orders.

Securities and Exchange Act B.E. 2535: Chapter 8 Division 1; ss.296–297/1; ss.317/1–317/8

Rule 1: Section 244/3(1)

1. Law/Rule

Under the Securities and Exchange Act B.E. 2535 Section 244/3(1)

No person shall take any of the following actions:

(1) placing a trading order or trading securities in such a way that **misleads other persons regarding the price or volume** of the securities trading;

Section 244/5(5), presumption

Any of the following acts shall be presumed to be an act that has caused other persons to have a misunderstanding of the price or volume of the securities trading under Section 244/3 (1) ... :

(5) placing, modifying, or cancelling a securities trading order in such a way that **obstructs securities trading of other persons**, which causes other persons to place a trading order **at a higher or lower price** than it should have been.

Section 238, scope

The provisions under this Division shall apply to **listed securities** and securities traded in the over-the-counter center.

Criminal Code Section 59, intent (summary)

A person is criminally liable only for an act done **intentionally**, that is, done consciously while wanting or foreseeing its result.

Elements to Prove

No.	Element
1	Any person
2	Places a trading order or trades securities
3	Listed securities (s.238)
4	Misleads others about price or volume
4(i)	s.244/5(5): places, modifies or cancels orders
4(ii)	s.244/5(5): obstructs other persons' trading
4(iii)	s.244/5(5): others trade at a worse price
5	Intent (Criminal Code s.59)

Securities and Exchange Act B.E. 2535, ss.238, 244/3(1), 244/5(5) (pp.80–83); Criminal Code s.59

Rule 1: Analysis and Conclusion

2. Analysis

From the facts, นางสาวภรัณยา placed large buy orders in TSR for 47 trading days. Under Section 244/3(1), every element is met:

First, she is an individual, so she is “any person” (F1).

Second, she placed trading orders and traded by hitting the offers and sweeping the sell orders (F3).

Third, TSR is listed on the SET, so Section 238 applies (F2).

Fourth, her large bids at levels 1 and 2 obstructed other buyers, who had to bid higher (F4). **All three elements of s.244/5(5) are met**, so the law presumes others were misled; the SEC also found the public was misled (F6). No s.244/4 exception applies.

Fifth, she acted intentionally (Criminal Code s.59): she repeated the orders for 47 days with clear reasons to lift the price, including **her own 13.02% stake** (F5, F11).

3. CONCLUSION

In conclusion, because every element is met, นางสาวภรัณยา’s conduct **violates Section 244/3(1)**.

Element Check

Element	Facts	Result
1 Any person	F1	**Met**
2 Order or trade	F3	**Met**
3 Listed securities	F2	**Met**
4 Misleads others	F6	**Met**
4(i) Places orders	F4	**Met**
4(ii) Obstructs others	F4	**Met**
4(iii) Worse price	F4	**Met**
5 Intent	F5, F11	**Met**

Facts F1–F6, F11; Securities and Exchange Act ss.238, 244/3(1), 244/4, 244/5(5); Criminal Code s.59

Rule 2: Section 244/3(2)

1. Law/Rule

Under the Securities and Exchange Act B.E. 2535 Section 244/3(2)

No person shall take any of the following actions: ...

(2) placing a securities trading order or trading securities **on a continued basis** with an **intent to cause the price or the volume** of such securities trading to be **inconsistent with the normal market condition**.

Section 244/5(5), presumption

Any of the following acts shall be presumed to be ... an act that has caused the price or volume of such securities trading to be inconsistent with the normal market condition under Section 244/3 (2), as the case may be: ...

(5) placing, modifying, or cancelling a securities trading order in such a way that **obstructs securities trading of other persons**, which causes other persons to place a trading order at a higher or lower price than it should have been.

Not used: Section 244/5(4) (pre-opening or pre-closing orders). The SEC cited it, but no news gives facts for its elements (F9).

Elements to Prove

No.	Element
1	Any person
2	Places a trading order or trades securities
3	Listed securities (s.238)
4	On a continued basis
5	Intent (Criminal Code s.59)
6	Special intent: abnormal price or volume
6(i)	s.244/5(5): places orders
6(ii)	s.244/5(5): obstructs others
6(iii)	s.244/5(5): others trade at a worse price

Securities and Exchange Act B.E. 2535, ss.244/3(2), 244/5(4)(5) (pp.82–83); Criminal Code s.59

Rule 2: Analysis and Conclusion

2. Analysis

From the facts, she kept buying TSR for 47 trading days while SABUY and she both held large TSR stakes (F3, F10, F11). Under Section 244/3(2), every element is met:

First to Third, as in Rule 1, she is any person who placed trading orders in a listed security (F1, F2, F3).

Fourth, the orders were **on a continued basis**, day after day for 47 trading days (F3).

Fifth, the orders were deliberate and repeated, so she acted intentionally (F3, F4).

Sixth, she intended an abnormal price: SABUY needed a higher Q2 price, she wanted a spread profit, and her own 13.02% stake rose with TSR's 56% gain (F5, F11, F12). Her bids meet all three elements of s.244/5(5) (F4), and the SEC found the price was moved away from normal (F6).

However, we do not use s.244/5(4), because no facts support it (F9).

3. CONCLUSION

In conclusion, because every element is met, her conduct also **violates Section 244/3(2)**, which carries the heavier penalty in Section 296/1.

Element Check

Element	Facts	Result
1 to 3 As in Rule 1	F1–F3	**Met**
4 Continued basis	F3	**Met**
5 Intent	F3, F4	**Met**
6 Special intent	F5, F11, F12	**Met**
6(i) Places orders	F4	**Met**
6(ii) Obstructs others	F4	**Met**
6(iii) Worse price	F4	**Met**
s.244/5(4)	F9	*Not used*

Facts F1–F6, F9–F12; Securities and Exchange Act ss.244/3(2), 244/5(4)(5), 296/1; Criminal Code s.59

Rule 3: Criminal Penalties

1. Law/Rule

Section 296

Any person who contravenes Section 240, Section 241, Section 242, Section 244/1, Section 244/2 or Section 244/3 (1) shall be liable to

imprisonment for a term not exceeding two years or a fine from five hundred thousand baht to two million baht, or both.

Section 296/1

Any person who contravenes Section 244/3 (2) or Section 244/7 shall be liable to

imprisonment for a term not exceeding five years or a fine from one million baht to five million baht, or both.

Section 296/2

... if the offender has received or should have received a benefit from such offence, **a fine not exceeding two times the benefit** shall be imposed and in any case such fine shall not be less than the minimum amount as specified under Section 296 or Section 296/1 ...

Section 297/1 (summary of (1) to (4))

When a court finds an offence under Section 296 or 296/1, it may order repayment of the benefit, a trading ban of up to five years, a director or executive ban of up to ten years, and reimbursement of SEC investigation costs.

Elements to Prove

No.	Element
296	Contravenes s.244/3(1)
296/1	Contravenes s.244/3(2)
296/2 (a)	Offence under s.296 or 296/1
296/2 (b)	Received or should have received a benefit
297/1	A court finds the offence

Securities and Exchange Act B.E. 2535, ss.296, 296/1, 296/2, 297/1 (pp.97–98)

Rule 3: Analysis and Conclusion

2. Analysis

From the facts, Rules 1 and 2 show both offences, and the CSC ordered her to repay the benefit she received or should have received (F7). If she is prosecuted:

First, Section 296 is met for s.244/3(1): up to two years in prison, a fine of THB 0.5 to 2 million, or both.

Second, Section 296/1 is met for s.244/3(2), the heavier rule: **up to five years in prison**, a fine of THB 1 to 5 million, or both.

Third, both elements of Section 296/2 are met, so the fine may be **up to two times the benefit**, but not below the minimum (F7, F11).

However, Section 297/1 is not met yet, because no court has convicted her; the case is in the Civil Court (F8).

3. CONCLUSION

In conclusion, she faces **up to five years in prison and a fine of up to two times the benefit** (at least THB 1 million), unless the criminal right ends through the civil route in Rule 4.

Element Check

Element	Facts	Result
s.296	Rule 1	**Met**
s.296/1	Rule 2	**Met**
s.296/2 (a)	Rules 1–2	**Met**
s.296/2 (b)	F7, F11	**Met**
s.297/1	F8	**Not met yet**

Rules 1–2; Facts F7, F8, F11; Securities and Exchange Act ss.296, 296/1, 296/2, 297/1, 317/8

Rule 4: Civil Sanctions

1. Law/Rule

Section 317/1(1)

The following offences shall be deemed the offences whereby civil sanctions may be imposed on the offenders: (1) committing unfair securities trading practice, which is **an offence under Section 296 or Section 296/1**;

Section 317/4

Civil sanctions shall be: (1) a civil penalty under Section 317/5; (2) a compensation at an equal amount to the benefit ...; (3) a suspension of trading ... **not exceeding five years**; (4) a bar from serving as a director or executive ... **not exceeding ten years**; (5) a reimbursement of investigative expenses incurred by the SEC Office.

Section 317/5(1)

... a civil penalty shall be imposed at an amount **not exceeding two times the benefit** ..., but not less than five hundred thousand baht ...

Sections 317/7 and 317/8

317/7: ... the offender agrees to comply with the specified civil sanction ... after the offender has made a payment in full, the right to institute a criminal prosecution shall extinguish.

317/8: In cases where the offender **refuses** to extinguish the case under Section 317/7, **the SEC Office shall bring an action against the offender in the court** ... the interest thereof shall be accumulated as from the date of entry of the plaint ... After the court has passed a judgment ... and the offender has made the payment in full, the right to institute criminal prosecution shall extinguish.

Elements to Prove

No.	Element
317/1(1)	Offence under s.296 or 296/1
317/4	Sanctions within the limits
317/5(1)	Penalty up to 2 times the benefit, at least THB 0.5M
317/7	Offender consents and pays
317/8	Offender refuses, so the SEC sues

Securities and Exchange Act B.E. 2535, ss.317/1, 317/4, 317/5, 317/7, 317/8 (pp.102–104)

Rule 4: Analysis and Conclusion

2. Analysis

From the facts, the CSC imposed civil sanctions (F7), but she did not consent, so the SEC asked the prosecutor to sue her in the Civil Court (F8). Under Sections 317/1 to 317/8:

First, her offences are punishable under Sections 296 and 296/1 (Rule 3), so Section 317/1(1) is met.

Second, the CSC used all five sanctions in Section 317/4: **THB 32,327,329** in total, a 6-month trading ban and a 12-month director ban, all within the limits (F7).

Third, the news does not split the THB 32.3 million into its parts, so we cannot check the Section 317/5(1) amount.

Fourth, she refused, so Section 317/7 is not met and Section 317/8 applies: the SEC claims **THB 43,018,879.32** plus interest from the filing date (F8).

3. CONCLUSION

In conclusion, civil sanctions apply; because she refused them, **the case is before the Civil Court under Section 317/8**, and the criminal right ends only after judgment and full payment.

Element Check

Element	Facts	Result
s.317/1(1)	Rule 3	**Met**
s.317/4	F7	**Met**
s.317/5(1)	No data	*Cannot check*
s.317/7	F8	**Not met**
s.317/8	F8	**Met**

Facts F7, F8; Securities and Exchange Act ss.317/1(1), 317/4, 317/5(1), 317/7, 317/8

Conclusion

3. CONCLUSION

In conclusion, นางสาวภรัณยา รุจนพรพจี **has committed unfair securities trading under Section 244/3(1) and (2)** of the Securities and Exchange Act B.E. 2535, because every element of both rules is met, supported by the presumption in Section 244/5(5). She may face **up to five years in prison and a fine of up to two times the benefit** under Sections 296/1 and 296/2. The SEC used civil sanctions instead; she refused the CSC's THB 32.3 million sanction, so under Section 317/8 the SEC is suing her for **THB 43.0 million plus interest**.

Rule	Result
Rule 1: Section 244/3(1)	**Violated: all 5 elements met, with presumption s.244/5(5)**
Rule 2: Section 244/3(2)	**Violated: all 6 elements met, including special intent**
Rule 3: Criminal penalties	Up to 5 years in prison and a fine of up to 2 times the benefit, if prosecuted
Rule 4: Civil sanctions	THB 32.3 million refused; Civil Court claim of THB 43.0 million plus interest (pending)

Based on the facts reported in the news, as found by the SEC and the CSC. No court judgment had been reported as of October 2026.

Thank You

GROUP 3

Thank you

Questions and discussion

Group Assignment 2 (2026), Ethics and Law for Financial Engineers, Dr. Chatchai Lapprathana

News Links

Main news, Hoonsmart, 24 Jan 2026
https://hoonsmart.com/archives/400329

Follow-up, Thansettakij, 11 May 2026
https://www.thansettakij.com/finance/658785